

Gleneagle Civic Association

Dispute Resolution Policy and
Procedure



ADOPTED JANUARY 21, 2025

**GLENEAGLE CIVIC ASSOCIATION
DISPUTE RESOLUTION POLICY AND PROCEDURE**

Effective Date: January 21, 2025

1. Required dispute resolution procedure for claims against Association. Prior to filing a lawsuit against the Association, the Board, or any officer, director, or property manager of the Association, an Owner must request and attend a hearing with the Board. The request will be in writing and will be personally delivered to any Board member or the Association's property manager. The Owner, in the request and at the hearing, must make a good faith effort to explain the grievance to the Board and resolve the dispute in an amicable fashion, and will give the Board a reasonable opportunity to address the Owner's grievance. Upon receiving a request for a hearing, the Board will give notice of the date, time, and place of the hearing to the person requesting the hearing. The Board will schedule this hearing for a date not less than 14 or more than 30 days from the date the request is received. If the dispute cannot be resolved, the parties may utilize the discretionary mediation procedure set forth below but will not be required to do so.

2. Discretionary dispute resolution procedures for other claims. The procedures set forth below may be used in any disputes between Owners and/or residents. At its discretion, the Board may use the procedures set forth below to resolve disputes with Owners prior to filing litigation.

A. Negotiation. A request for dispute resolution by negotiation may be initiated by an Owner or the Association. The request will be in writing stating the nature and details of the dispute and will be personally delivered to the other party. So long as the other party agrees to negotiate, a meeting will be held between the parties to begin a good faith attempt to negotiate a resolution not less than 14 or more than 30 days of receipt of the request, unless otherwise extended by written agreement. Through negotiation, the parties will communicate directly with each other in an effort to reach an agreement that serves the interests of both parties. Should the dispute pertain to property issues, each party will be granted the right to inspect the alleged defects or problems at a time convenient to everyone involved.

B. Mediation. If the dispute is not resolved by negotiation, any party may request in writing that the issue be submitted to mediation. If the parties agree to mediate the dispute prior to seeking other remedies, they will participate in good faith in the mediation. The role of the mediator is to facilitate further negotiation between the parties. The mediator will not have power to decide how to resolve the dispute but will use recognized, accepted mediation techniques to assist the parties in making that decision. The mediator will be selected by a consensus of the parties involved within 14 days of the receipt of the request. Any cost of mediation will be shared equally among the parties unless they and the mediator agree otherwise.

This Dispute Resolution Policy and Procedure was adopted by the Board of Directors on this

21st day of January, 2025.

GLENEAGLE CIVIC ASSOCIATION,
a Colorado nonprofit corporation

By: _____
Its: President

